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CHAPTER 1

An Act to provide that, in the event of a Regency becoming necessary under the Regency Act, 1937, His Royal Highness the Duke of Edinburgh shall in certain circumstances be the Regent, to provide that the heir apparent or heir presumptive to the Throne shall be deemed for the purposes of that Act to be of full age if he or she has attained the age of eighteen years, to add Her Majesty Queen Elizabeth the Queen Mother to the persons to whom royal functions may be delegated as Counsellors of State, and for purposes connected with the matters aforesaid. [19th November 1953.]

WHEREAS Your Majesty, by Your Majesty's Royal Message to both Houses of Parliament, has been pleased to recommend that Parliament should consider the expediency of providing that His Royal Highness the Duke of Edinburgh should be the Regent if a child of Your Majesty and His Royal Highness accedes to the Throne while under the age of eighteen years or if a Regency becomes necessary during the lifetime of Your Majesty while there is no child or grandchild of Your Majesty and His Royal Highness who can be the Regent, and also the expediency of amending the law so that the heir apparent or heir presumptive to the Throne should be capable of being Regent if he or she has attained the age of eighteen years:

And whereas Your Majesty by the same Message recommended that Parliament should consider the amendment of the Regency Acts, 1937 and 1943, so as to add Her Majesty Queen Elizabeth the Queen Mother to the persons to whom, as Counsellors of State, royal functions can be delegated:

Now, therefore, we, Your Majesty's most dutiful and loyal subjects, the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, do most humbly beseech Your Majesty that it be enacted, and be it enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

H.R.H. The Duke of Edinburgh to be Regent in certain circumstances.

1 Edw. 8 &

1 Geo. 6. c. 16.

1.—(1) If a Regency becomes necessary under the Regency Act, 1937, on the succession to the Crown of a child of Her Majesty and His Royal Highness the Duke of Edinburgh while under the age of eighteen years, His Royal Highness, if living, shall be the Regent.

(2) If a Regency becomes necessary under the Regency Act, 1937, during the reign of Her present Majesty, His Royal Highness the Duke of Edinburgh, if living, shall be the Regent unless, or (as the case may be) until, there is a child or grandchild of Her Majesty and His Royal Highness who can under the provisions of the said Act be the Regent.

(3) The preceding provisions of this section shall have effect subject to—

(a) subsection (2) of section three of the Regency Act, 1937 (which enumerates the disqualifications for becoming or being Regent), and

(b) subsection (5) of that section (which provides for the case where the Regent is incapacitated by infirmity for performing the royal functions or is not available for the performance of those functions),

but, save as aforesaid, that section shall have effect subject to the preceding provisions of this section.

(4) Where His Royal Highness the Duke of Edinburgh is Regent by virtue of this section, section six of the Regency Act, 1937 (which relates to the appointment of Counsellors of State) shall have effect as if the following provision were substituted for subsection (4) thereof:—

“(4) The provisions of this section shall apply in relation to a Regent with the substitution for references to the Sovereign of references to the Regent and the omission, in subsection (2) thereof, of the reference to the wife or husband of the Sovereign.”

2. The heir apparent or heir presumptive to the Throne shall be deemed for all the purposes of the Regency Act, 1937, to be of full age if he or she has attained the age of eighteen years. Amendment of meaning of “full age.”

3. Her Majesty Queen Elizabeth the Queen Mother shall be added to the persons whom subsection (2) of section six of the Regency Act, 1937 (as set out in section one of the Regency Act, 1943) requires, subject as therein mentioned, to be the Counsellors of State for the purposes of any delegation of royal functions under that section, and accordingly during her life that section shall have effect as if a reference to her were inserted in subsection (2) thereof next after the reference to the wife or husband of the Sovereign. Queen Elizabeth the Queen Mother to be of Counsellors of State. 6 & 7 Geo. 6. c. 42.

4.—(1) This Act may be cited as the Regency Act, 1953, and shall be construed as one with the Regency Acts, 1937 and 1943, and those Acts and this Act may be cited together as the Regency Acts, 1937 to 1953. Short title, construction, citation and repeal.

(2) In subsection (2A) of section six of the Regency Act, 1937 (set out in section one of the Regency Act, 1943) the words "The heir apparent or heir presumptive to the Throne if not under the age of eighteen years shall not be disqualified from being a Counsellor of State by reason only of his not being of full age, but save as aforesaid" (being words rendered unnecessary by section two of this Act) are hereby repealed.

CHAPTER 2

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March, one thousand nine hundred and fifty-four.
[18th December 1953.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Issue of
£126,843,450
out of the
Consolidated
Fund for the
service of the
year ending
31st March,
1954.

Power for
the Treasury
to borrow.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom and apply towards making good the supply granted to Her Majesty for the service of the year ending on the thirty-first day of March, one thousand nine hundred and fifty-four, the sum of one hundred and twenty-six million, eight hundred and forty-three thousand, four hundred and fifty pounds.

2.—(1) The Treasury may borrow from any person by the issue of Treasury Bills or otherwise, and the Bank of England and the Bank of Ireland may advance to the Treasury on the credit of the said sum, any sum or sums not exceeding in the whole one hundred and twenty-six million, eight hundred and forty-three thousand, four hundred and fifty pounds.

(2) The date of payment of any Treasury Bills issued under this section shall be a date not later than the thirty-first day of March, one thousand nine hundred and fifty-four, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills) shall not apply with respect to those bills.